

Memorandum

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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SHERWIN MURRELL,

Plaintiff,

-against-

THE CITY OF NEW YORK, et al.,

Defendants.
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**JUDGMENT
PURSUANT TO RULE 68**

07-CV-5609 (CM)(DCF)

USDS SDNY
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DOC #:
DATE FILED: <u>5/21/09</u>

WHEREAS, plaintiff commenced this action by filing a complaint on or about June 12, 2007 and an amended complaint on January 21, 2008, alleging that defendants violated plaintiff's federal civil and state common law rights; and

WHEREAS, defendants have denied any and all liability arising out of plaintiff's allegations; and

WHEREAS, on May 1, 2009, pursuant to Rule 68 of the Federal Rules of Civil Procedure, defendant City made plaintiff Sherwin Murrell an Offer of Judgment; and

WHEREAS, plaintiff Sherwin Murrell accepted defendant City's Rule 68 Offer of Judgment;

NOW, IT IS HEREBY ORDERED, ADJUDGED AND DECREED THAT:

1. Pursuant to Rule 68 of the Federal Rules of Civil Procedure, plaintiff Sherwin Murrell will take judgment against defendant City of New York in this action for the sum of Thirty Five Thousand and One (\$35,001.00) Dollars, plus reasonable attorneys' fees, expenses and costs for plaintiff's federal claims to May 1, 2009.

2. This judgment shall be in full satisfaction of all federal and state law claims or rights that plaintiff Sherwin Murrell may have to damages, or any other form of relief, arising out of the alleged acts or omissions of the defendants, or any official or employee, either past or present, of the City of New York, or any agency thereof, in connection with the facts and circumstances that are the subject of this action.

3. This judgment shall not be construed as an admission of liability by any defendant, official, employee, representative or agent, past or present, of the City of New York, or agency thereof; nor it is an admission that plaintiff has suffered any damages.

4. Acceptance of the Rule 68 Offer of Judgment acts to release and discharge all defendants; their successors or assigns; and all past and present officials, employees, representatives and agents of the City of New York, or any agency thereof, from any and all claims that were or could have been alleged by plaintiff Sherwin Murrell in the above-referenced action.

5. Acceptance of the offer of judgment operated to waive plaintiff's right to any claim for interest on the amount of the judgment.

Dated: New York, New York
May 24, 2009



U.S.D.J.

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
SHERWIN MURRELL,

Plaintiff,

-against-

CITY OF NEW YORK, et. al.,

Defendants.

**RULE 68 OFFER OF
JUDGMENT**

07 Civ 5609 (CM)(DCF)

-----X

Pursuant to Rule 68 of the Federal Rules of Civil Procedure, defendant City of New York hereby offers to allow plaintiff Sherwin Murrell to take a judgment against it in this action for the total sum of \$35,001, plus reasonable attorneys' fees, expenses and costs to the date of this offer for plaintiff's federal claims.

This judgment shall be in full satisfaction of all federal and state law claims or rights that plaintiff may have to damages, or any other form of relief, arising out of the alleged acts or omissions of defendants City of New York, P.O. Michael Parks, P.O. Brian Hillmann, P.O. Francisco Tavares, P.O. Tina Everett, Sgt. Heng Peou, P.O. Michael Pedone, P.O. Jose Higa, or any official, employee, or agent, either past or present, of the City of New York, or any agency thereof, in connection with the facts and circumstances that are the subject of this action.

This offer of judgment may only be accepted up to and including May 15, 2009.

This offer of judgment is made for the purposes specified in Rule 68 of the Federal Rules of Civil Procedure and is not to be construed as an admission of liability by any defendant, or any official, employee, or agent of the City of New York, or any agency thereof; nor is it an admission that plaintiff has suffered any damages.

Acceptance of this offer of judgment will act to release and discharge defendants City of New York, P.O. Michael Parks, P.O. Brian Hillmann, P.O. Francisco Tavares, P.O. Tina Everett, Sgt. Heng Peou, P.O. Michael Pedone, P.O. Jose Higa; their successors or assigns; and all past and present officials, employees, representatives and agents of the City of New York, or any agency thereof, from any and all claims that were or could have been alleged by plaintiff in the above-referenced action.

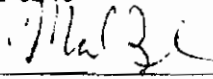
Acceptance of this offer of judgment also will operate to waive plaintiff's rights to any claim for interest on the amount of the judgment.

Plaintiff agrees that payment of \$35,001 within 90 days of the date of acceptance of the offer shall be a reasonable time for such payment.

The judgment shall contain and recite the terms and conditions set forth herein.

Dated: New York, New York
May 1, 2009

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